



Fiona Stanley Fremantle Hospitals Group

OFFICIAL

Policy and Procedure

Restriction on freedom of communication

Reference #: FSFH-MENH-POL-0004

Scope

Site	Service/Department/Unit	Disciplines
Fiona Stanley Hospital Fremantle Hospital	Mental Health Service	Medical, Nursing Allied Health.
Exclusion: Cockburn Health		

1. Introduction

Patients have a right to private, lawful and uncensored communication including access to mobile phones and social media. As per Section 261 and 262 of the Mental Health Act 2014 (MHA 2014) a patient may have their freedom of communication restricted by their treating Psychiatrist if it is deemed in the best interest of the patient. This document outlines the requirements and processes to be observed when restricting communication for patients within the Mental Health Service.

2. Terminology

Form 12C	Mental Health Act 2014 approved legal form 'Restriction on Freedom of Communication'. The order limits or prohibits a patient's right to exercise their right to freedom of communication.
Restricted communications	Forms of communication which may be restricted include: - Receiving and sending of postal mail and electronic communications - Receiving visitors and having contact from other persons - Making and receiving telephone calls - Communication on social media
Treatment Support and Discharge Plan	Statewide clinical form used to summarise the goals and clinical issues to be targeted in the episode of care, with the intent of aiding the monitoring of clinical status by the patient,

their family/significant others, their GP and other service providers.

3. Policy

The decision to restrict a patient's communications may only be made by the treating/duty Psychiatrist in consultation with the treating team and the patient. The Mental Health Tribunal may be asked to review the matter and can overturn the decision.

- The ability to restrict a patient's communication excludes contact with the Mental Health Advocacy Service (MHAS) or Legal Practitioner unless the treating Psychiatrist deems there is a risk of harm.
- Restrictions of communication may apply to voluntary patients, patients referred for examination or involuntary patients.
- Restriction on communication should be lifted at the earliest opportunity.

4. Procedure

- There are no absolute contraindications for the restriction of a patient's freedom of communication.
- Patients will be provided with information on acceptable use of mobile phones and social media within the ward environment on admission and as indicated.
- Restriction on communication may apply where there is evidence of improper use breaching of the rules of confidentiality within the ward environment.
- Document rationale for restricting the patient's communications in the integrated progress notes in the patients' medical record.
- The Shift Coordinator will indicate on the Journey Board and the iCM handover sheet that patient's freedom of communication has been restricted.
- Inform family/significant other of restriction to communication where appropriate.
- When restrictions have been lifted, the original Form 12C will be forwarded to the Mental Health Tribunal via the Release of Information Officer and a copy placed in the patient's medical record.

4.1. Form 12C Documentation

- The Restriction on Freedom of Communication Form 12C must be completed by the Consultant Psychiatrist
- The Form 12C remains valid provided it is reviewed by a consultant Psychiatrist every 24 hours.

- If the Form 12C is not reviewed within the 24-hour period it will lapse. If following review, the restriction is still required a consultant Psychiatrist must complete another Form 12C.
- The consultant Psychiatrist will confirm, amend or revoke and document on the Record of Confirmation, Amendment or Revocation of Restriction of Freedom of Communication Attachment to Form 12C.

5. Compliance/Performance Monitoring

The Heads of Service are responsible for monitoring compliance with this policy and procedure via the following methods:

- Complaints monitoring

6. Related Documents

WA Health:

- [Patient Confidentiality Factsheet](#)
- [Guidelines for Health Service Providers on the use of Photographic, Audio or Video Equipment in Mental Health Services](#)

FSFHG:

- Clinical Documentation (FSFH-HW-POL-0039)
- Clinical Handover (FSFH-HW-POL-0035)

7. Related Standards

NSQHS Standards:

- Clinical Governance
- Comprehensive care

8. Related Legislation

Western Australian Mental Health Act 2014



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9. Authorisation

EXECUTIVE SPONSOR: Service Director, Service 5					
Version	Date Issued	Compiled/Revised By	Committee/Consumer Group Consulted	Endorsed By	Revision due
1	04/2019	Clinical Nurse Specialist, Clinical Improvement		FSFHG Policy Committee	04/2022
2	04/2022	Clinical Nurse Specialist, Clinical Improvement	S5 SQR Committee	S5 SQR Committee	04/2025
3	05/2025	CNS - Clinical Improvement		S5 SQR Committee	07/2028